



INDIAN POLITY

- UNION TERRITORIES
- SCHEDULED AND TRIBAL AREAS

MODULE – 93

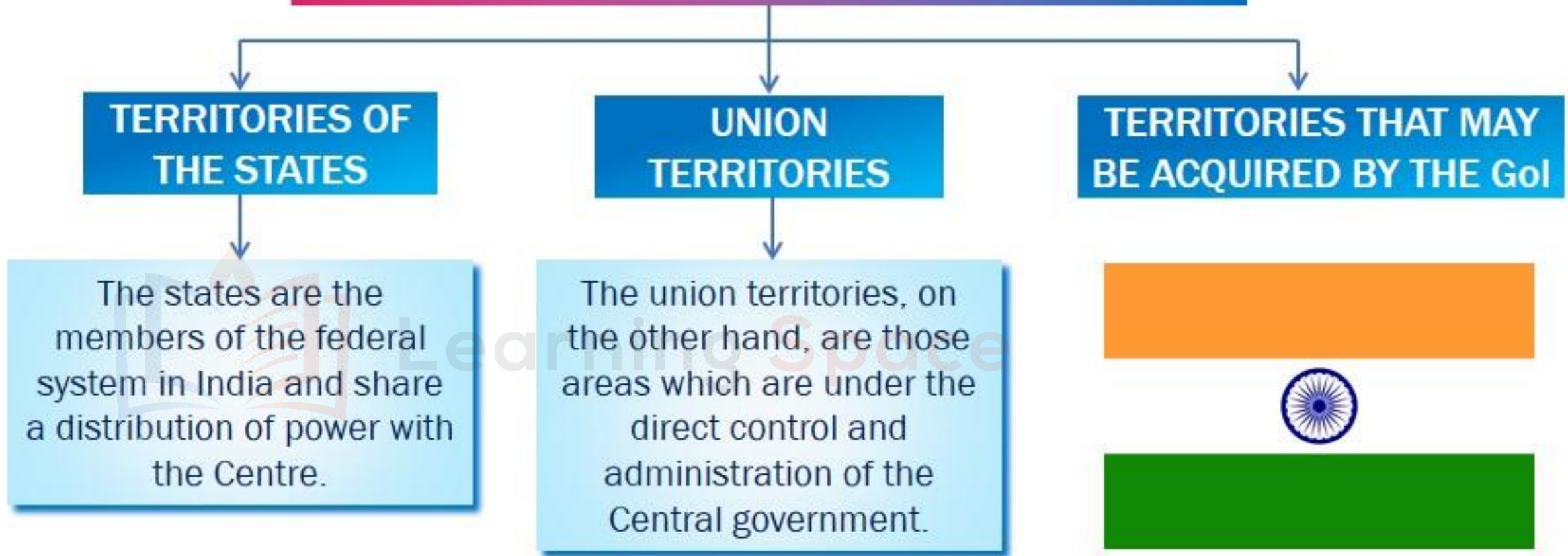


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UNION TERRITORIES

ARTICLE 1 OF THE INDIAN CONSTITUTION



Hence, UTs are also known as 'centrally administered territories'. In this way, existence of these territories constitutes a conspicuous departure from federalism in India.

UNION TERRITORIES

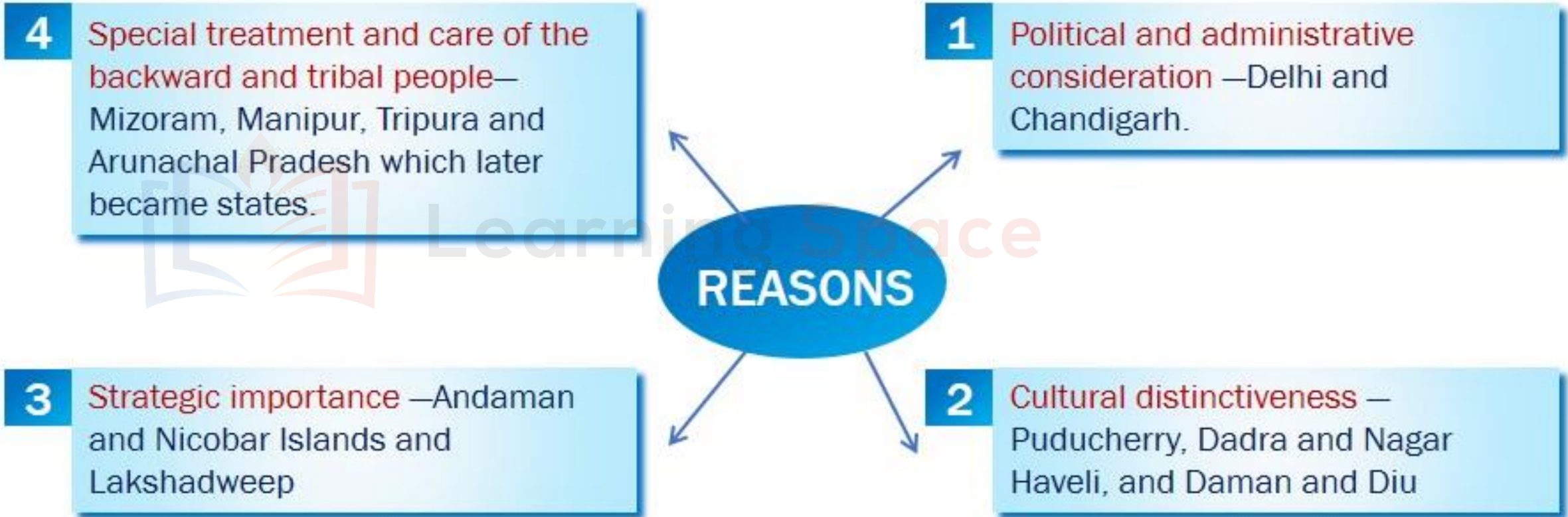
CREATION OF UNION TERRITORIES

- 1 During the British Rule, certain areas were constituted as 'scheduled districts' in 1874.
- 2 Later, they came to be known as 'chief commissioners provinces'.
- 3 After independence, they were placed in the category of Part 'C' and Part 'D' states
- 4 In 1956, they were constituted as the 'union territories' by the 7th Constitutional Amendment Act (1956) and the States Reorganisation Act (1956).
- 5 Gradually, some of these union territories have been elevated to statehood.
- 6 Thus, Himachal Pradesh, Manipur, Tripura, Mizoram, Arunachal Pradesh and Goa, which are states today were formerly union territories.

UNION TERRITORIES

CREATION OF UNION TERRITORIES

The union territories have been created for a variety of reasons.



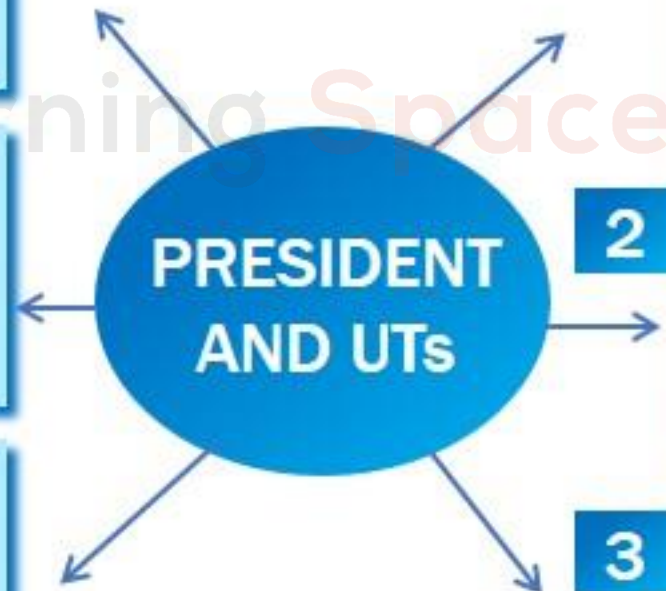
ADMINISTRATION OF UNION TERRITORIES

Articles 239 to 241 in Part VIII of the Constitution deal with the union territories. Even though all the union territories belong to one category, there is no uniformity in their administrative system

6 In that capacity, the governor is to act independently of his council of ministers.

5 The President can also appoint the governor of a state as the administrator of an adjoining union territory.

4 It may be Lieutenant Governor or Chief Commissioner or Administrator.



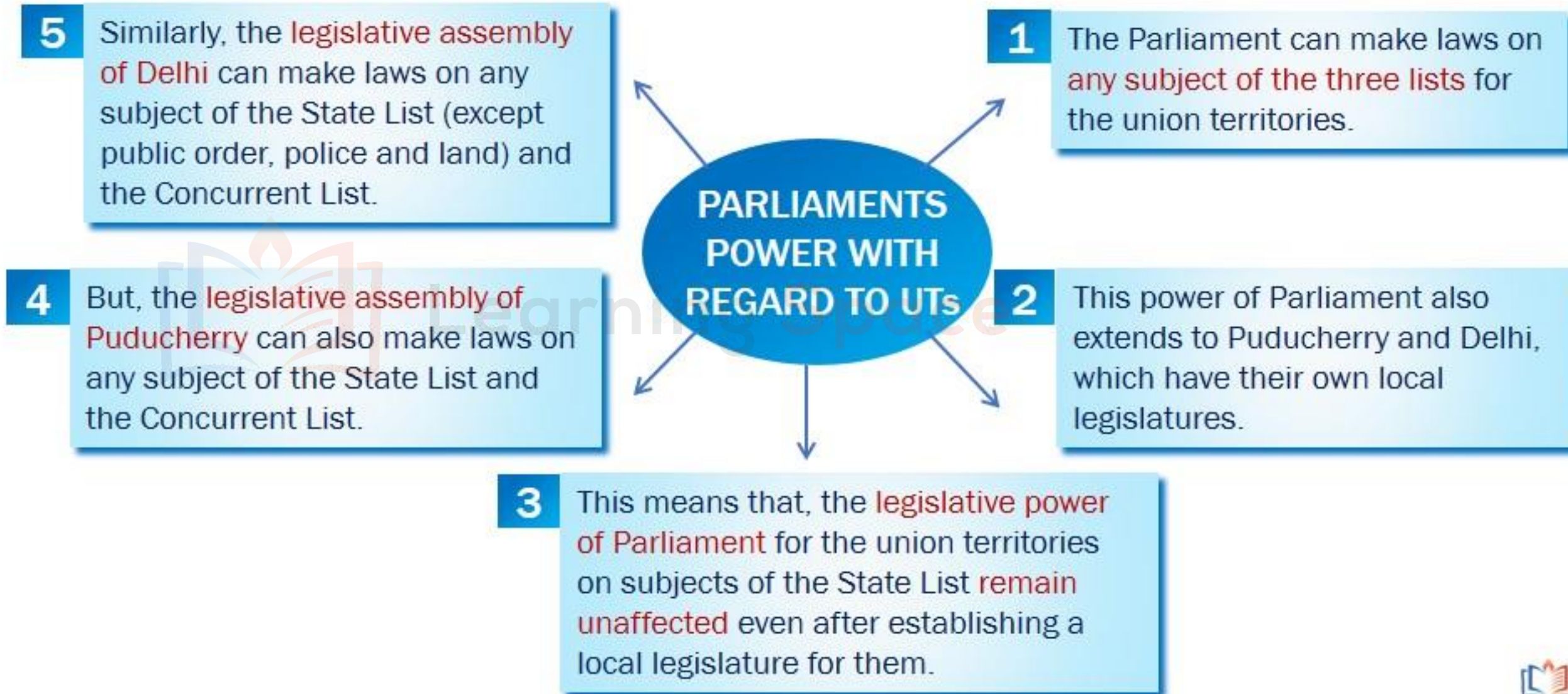
PRESIDENT AND UTs

1 Every union territory is administered by the President acting through an administrator appointed by him.

2 An administrator of a union territory is an agent of the President and not head of state like a governor.

3 The President can specify the designation of an administrator.

ADMINISTRATION OF UNION TERRITORIES



UNION TERRITORIES

ADMINISTRATION OF UNION TERRITORIES

PRESIDENTIAL REGULATIONS



- 1 The President can **make regulations** for the peace, progress and good government of the Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, and Daman and Diu.
- 2 A regulation made by the President has the **same force and effect as an act of Parliament** and can also repeal or amend any act of Parliament in relation to these UTs.

UNION TERRITORIES

ADMINISTRATION OF UNION TERRITORIES

CASE OF HIGH COURTS IN UTs



- 1 The Parliament can establish a high court for a union territory or put it under the jurisdiction of the high court of adjacent state.

- 2 Delhi is the only union territory that has a high court of its own (since 1966).

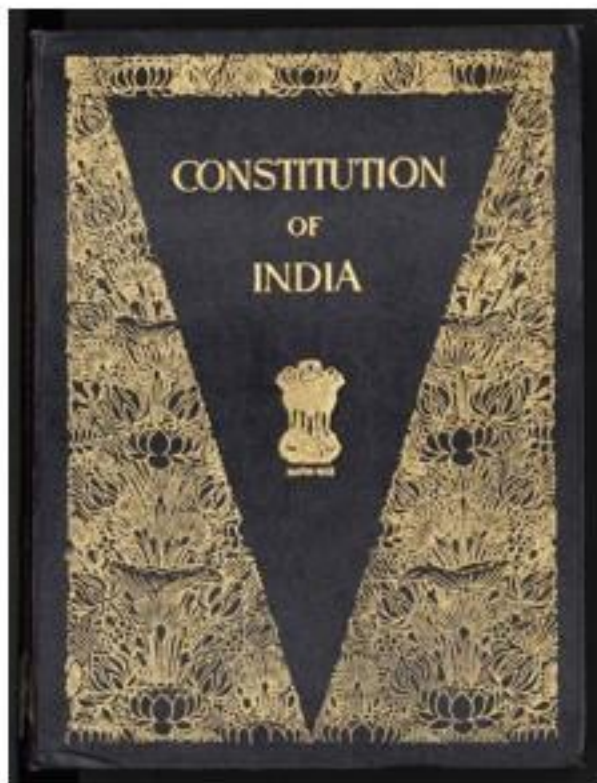
- 3 The Bombay High Court has got jurisdiction over two union territories — Dadra and Nagar Haveli, and Daman and Diu.

- 4 Andaman and Nicobar Islands, Chandigarh, Lakshadweep and Puducherry are placed under the Calcutta, Punjab and Haryana, Kerala, and Madras High Courts respectively.

UNION TERRITORIES

SPECIAL PROVISIONS FOR DELHI

PROVISIONS OF 69TH CONSTITUTIONAL AMENDMENT ACT OF 1991



- 1** It provided a special status to the Union Territory of Delhi, and re-designated it the National Capital Territory of Delhi and designated the administrator of Delhi as the lieutenant (lt.) governor.
- 2** It created a legislative assembly and a council of ministers for Delhi.
- 3** Previously, Delhi had a metropolitan council and an executive council.

UNION TERRITORIES

SPECIAL PROVISIONS FOR DELHI STATE LEGISLATURE IN DELHI



- 1** The strength of the assembly is fixed at 70 members, directly elected by the people.
- 2** The elections are conducted by the Election Commission of India.
- 3** The assembly can make laws on all the matters of the State List and the Concurrent List except the three matters of the State List, that is, public order, police and land.
- 4** But, the laws of Parliament prevail over those made by the Assembly.

UNION TERRITORIES

SPECIAL PROVISIONS FOR DELHI

RELATIONSHIP BETWEEN COUNCIL OF MINISTERS AND LG IN DELHI

- 1** The strength of the council of ministers is fixed at 10% of the total strength of the assembly, that is, seven—one chief minister and six other ministers.
- 2** The chief minister is appointed by the President (not by the Lt. governor).
- 3** The other ministers are appointed by the President on the advice of the chief minister.
- 4** The ministers hold office during the pleasure of the President.
- 5** The council of ministers is collectively responsible to the assembly.
- 6** The council of ministers headed by the chief minister aid and advise the Lt. governor in the exercise of his functions except in so far as he is required to act in his discretion.
- 7** In the case of difference of opinion between the Lt. governor and his ministers, the Lt. governor is to refer the matter to the president for decision and act accordingly.

UNION TERRITORIES

ADMINISTRATIVE SYSTEM OF UNION TERRITORIES AT A GLANCE

S.NO	UNION TERRITORIES	EXECUTIVE	LEGISLATURE	JUDICIARY
1	Andaman and Nicobar Islands	Lt. Governor	—	Under Calcutta High Court
2	Chandigarh	Administrator	—	Under Punjab and Haryana High Court
3	Dadra and Nagar Haveli	Administrator	—	Under Bombay High Court
4	Daman and Diu	Administrator	—	Under Bombay High Court
5	Delhi	a) Lt. Governor b) Chief minister c) Council of ministers	Legislative Assembly	Separate High Court
6	Lakshadweep	Administrator	—	Under Kerala High Court
7	Puducherry	a) Lt. Governor b) Chief minister c) Council of ministers	Legislative Assembly	Under Madras High Court

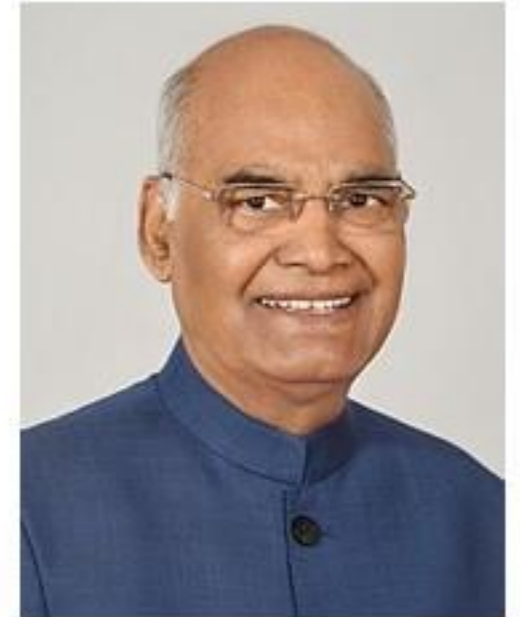
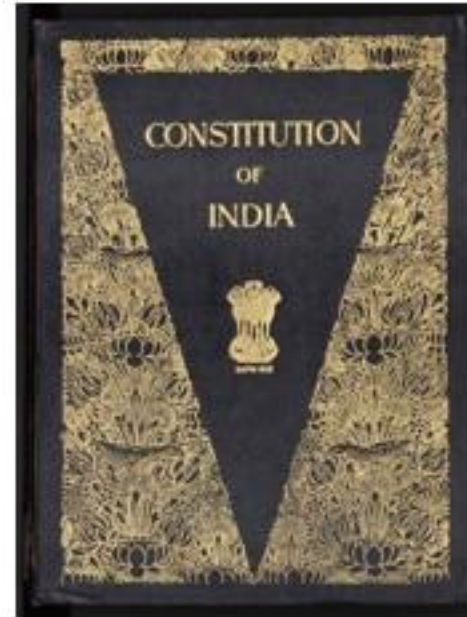
FAILURE OF CONSTITUTIONAL MACHINERY IN UTs

1 When a situation arises in which the administration of the territory cannot be carried on in accordance with the above provisions, the President can suspend their operation and make the necessary incidental or consequential provisions for administering the territory.

2 In brief, in case of failure of constitutional machinery, the president can impose his rule in the territory.

3 This can be done on the report of the Lt. governor or otherwise.

4 This provision resembles Article 356 which deals with the imposition of President's Rule in the states.



POWER OF LG TO ISSUE ORDINANCES

- 1** The Lt. governor is empowered to promulgate ordinances during **recess of the assembly.**
- 2** An ordinance has the same force as an act of the assembly.
- 3** Every such ordinance must be approved by the assembly within **six weeks from its reassembly.**
- 4** He can also withdraw an ordinance at any time.

- 5** But, he cannot promulgate an ordinance when the assembly is dissolved or suspended.
- 6** Further, no such ordinance can be promulgated or withdrawn without the prior **permission of the President.**

ORDINANCE

COMPARING STATES AND UNION TERRITORIES

S.NO	STATES	UNION TERRITORIES
1	Their relationship with Centre is federal .	Their relationship with Centre is unitary .
2	They share a distribution of power with the Centre .	They are under the direct control and administration of the Centre .
3	They have autonomy .	They do not have any autonomy.
4	There is uniformity in their administrative set-up.	There is no uniformity in their administrative set-up
5	Their executive head is known as governor .	Their executive head is known by various designations —administrator or lieutenant governor or chief commissioner
6	A governor is a constitutional head of the state	An administrator is an agent of the president .
7	Parliament cannot make laws on the subjects of the state list in relation to the states except under extraordinary circumstances.	Parliament can make laws on any subject of the 3 lists in relation to the union territories.

RULING OF THE MADRAS HIGH COURT

Madras High Court ruled that the Lieutenant-Governor of Puducherry can not interfere with the day-to-day administration of the Union Territory, when an elected Government is in place.



SALIENT POINTS

- The interference from the LG would amount to **running a parallel Government**.
- The Central Government as well as Administrator should be true to the concept of democratic principles.
- Otherwise, the constitutional scheme of the country, of being democratic and republic would be defeated.

MADRAS HIGH COURT VERDICT IN A NUTSHELL!



V. NARAYANASAMY

CHIEF MINISTER OF PUDUCHERRY

The Court said, that the decision taken by the Council of Ministers and the Chief Minister is binding on the secretaries and other officials.



KIRAN BEDI

LIEUTENANT GOVERNOR OF PUDUCHERRY

The High Court also said that the administrator is bound by the “aid and advice” clause in matters over which the assembly is competent to enact the laws.

Article 239A symbolises the supremacy of the Legislature above the Administrator in case of the Union Territory of Puducherry.

WHAT ARE THE POWERS AND SOURCES OF LG OF PUDUCHERRY



MADRAS HIGH COURT

- 1 Judge of the Madras High Court pointed out, there are significant differences in the powers conferred on the legislatures of Puducherry and Delhi under Articles 239A and 239AA of the Constitution.

- 2 Article 239AA imposes several restrictions on the legislature of Delhi, no such restrictions had been imposed explicitly in the case of Puducherry under Article 239A.

- 3 Article 239A lead to the creation of the law of Government of Union Territories Act, 1963 by which the Union Territory of Puducherry is administered.

- 4 The judge said, the Govt. secretaries of the Puducherry administration are required to report to the Council of Ministers headed by the Chief Minister on all official matters.



VERDICT OF THE FIVE-JUDGE CONSTITUTION BENCH



Lieutenant Governor of Delhi



Chief Minister of Delhi

The judgment came on the appeals filed by the NCT Government against August 4, 2016 judgment of the Delhi High Court that declared that LG has complete control of all matters regarding NCT and nothing will happen without the concurrence of LG.

- 1 A five-judge Constitution bench of the Supreme Court unanimously held that the Lieutenant Governor of Delhi is bound by the “aid and advice” of the popularly elected Government.
- 2 There is no room for anarchy or absolutism in a democracy and both have to work harmoniously with each other.
- 3 Except for issues of public order, police and land, the Lieutenant Governor of Delhi is bound by the aid and advice of the Government, which has the public mandate.



SUPREME COURT IN CLEARER TERMS



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- 1 Real authority to take decisions lies with the elected Government. This is the meaning of “aid and advice”.
- 2 Titular head (LG) has to act in accordance with the aid and advice.
- 3 There is no independent authority with LG to take decisions except in matters under Article 239 or those outside the purview of NCT Government.
- 4 Trivial difference of opinion between the LG and NCT Government cannot be referred to the President for a decision.

- 5 The issues referred should be of substantive or national importance.
- 6 In this context, CJI interpreted the phrase “any matter in the proviso” to article 239 AA(4) as “not every matter”.
- 7 Elected representatives would be reduced to a cipher, if any matter in Article 239 AA (4) was interpreted as “every matter” of governance.



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SCHEDULED AND TRIBAL AREAS

Article 244 in Part X of the Constitution envisages a special system of administration for certain areas designated as 'scheduled areas' and 'tribal areas'.

SCHEDULED AREAS

- Deals with the administration and control of scheduled areas and scheduled tribes in any state except the four states of Assam, Meghalaya, Tripura and Mizoram.
- The scheduled areas are treated differently from the other areas in the country because they are inhabited by 'aboriginals' who are socially and economically rather backward, and special efforts need to be made to improve their condition.
- Therefore, the whole of the normal administrative machinery operating in a state is not extended to the scheduled areas and the Central government has somewhat greater responsibility for these areas.

TRIBAL AREAS

- Deals with the administration of the tribal areas in the four northeastern states of AMTM.
- The tribes in AMTM states have not assimilated much the life and ways of the other people in these states.
- These areas have hitherto been anthropological specimens.
- The tribal people in other parts of India have more or less adopted the culture of the majority of the people in whose midst they live.
- The tribes in AMTM states, on the other hand, still have their roots in their own culture, customs and civilization.
- These areas are, therefore, treated differently by the Constitution and sizeable amount of autonomy has been given to these people for self-government.

SCHEDULED AND TRIBAL AREAS

FEATURES OF 5TH SCHEDULE

1. DECLARATION OF SCHEDULED AREAS

- The **president** is empowered to declare an area to be a scheduled area.
- He can also increase or decrease its area, alter its boundary lines, rescind such designation or make fresh orders for such re-designation on an area in consultation with the governor of the state concerned.

2. EXECUTIVE POWER OF STATE AND CENTRE

- The **executive power** of a state extends to the scheduled areas therein.
- But the **governor** has a special responsibility regarding such areas.
- He has to **submit a report** to the president regarding the administration of such areas, annually or whenever so required by the president.
- The executive power of the Centre extends to giving directions to the states regarding the administration of such areas.

SCHEDULED AND TRIBAL AREAS

FEATURES OF 5TH SCHEDULE

3. TRIBES ADVISORY COUNCIL

- Each state having scheduled areas has to establish a tribes advisory council to advise on welfare and advancement of the scheduled tribes.
- It is to consist of 20 members, three-fourths of whom are to be the representatives of the scheduled tribes in the state legislative assembly.

4. LAW APPLICABLE TO SCHEDULED AREAS

- The governor is empowered to direct that any particular act of Parliament or the state legislature does not apply to a scheduled area or apply with specified modifications and exceptions.
- He can also make regulations for the peace and good government of a scheduled area after consulting the tribes advisory council.
- Also, a regulation may repeal or amend any act of Parliament or the state legislature, which is applicable to a scheduled area.
- But, all such regulations require the assent of the president.

SCHEDULED AND TRIBAL AREAS

COMMISSION ON ADMINISTRATION SCHEDULED AREAS



DILIP SINGH BHURIA

- 1 The Constitution requires the president to appoint a commission to report on the administration of the scheduled areas and the welfare of the scheduled tribes in the states.

- 2 He can appoint such a commission at any time but compulsorily after ten years of the commencement of the Constitution.

- 3 Hence, a commission was appointed in 1960.

- 4 It was headed by **U N Dhebar** and submitted its report in 1961.

- 5 After four decades, the second commission was appointed in 2002 under the chairmanship of **Dilip Singh Bhuria**. It submitted its report in 2004.

SCHEDULED AND TRIBAL AREAS

ADMINISTRATION OF TRIBAL AREAS

FEATURES OF 6TH SCHEDULE



- 1** The tribal areas in the four states of Assam, Meghalaya, Tripura and Mizoram have been constituted as autonomous districts.
- 2** The **governor** is empowered to organise and re-organise the autonomous districts. Thus, he can increase or decrease their areas or change their names or define their boundaries and so on.
- 3** If there are different tribes in an autonomous district, the governor can divide the district into several **autonomous** regions.

SCHEDULED AND TRIBAL AREAS

ADMINISTRATION OF TRIBAL AREAS

FEATURES OF 6TH SCHEDULE

- 4**
- Each autonomous district has a district council consisting of 30 members, of whom four are nominated by the governor and the remaining 26 are elected on the basis of adult franchise.
 - The elected members hold office for a term of five years and nominated members hold office during the pleasure of the governor.
 - Each autonomous region also has a separate regional council.

- 5**
- The district and regional councils administer the areas under their jurisdiction.
 - They can make laws on certain specified matters like land, forests, canal water, shifting cultivation, village administration, inheritance of property, marriage and divorce, social customs and so on.
 - But all such laws require the assent of the governor.

SCHEDULED AND TRIBAL AREAS

ADMINISTRATION OF TRIBAL AREAS

FEATURES OF 6TH SCHEDULE

- 6**
- The district and regional councils within their territorial jurisdictions can **constitute village councils or courts** for trial of suits and cases between the tribes.
 - They hear appeals from them.
 - The jurisdiction of high court over these suits and cases is specified by the governor.

STATES IN 6 TH SCHEDULE	STATE LEGISLATURE ACT	PARLIAMENT ACT
Assam	Governor	Governor
Meghalaya, Tripura, Mizoram	Governor	President

- 7**
- The district and regional councils are empowered to assess and collect land revenue and to impose certain specified taxes.

- 8**
- The acts of Parliament or the state legislature do not apply to autonomous districts and autonomous regions or apply with specified modifications and exceptions.

- 9**
- The governor can appoint a commission to examine and report on any matter relating to the administration of the autonomous districts or regions.

QUESTION

Consider the following statements

- 1) The President enjoys the power to direct that an Act of Parliament does not apply to tribal areas (autonomous districts) in Assam, Meghalaya, Tripura and Mizoram.
- 2) The Governor is empowered to direct that an Act of Parliament does not apply to a scheduled area in the states.

Which of the above is / are correct?

- | | |
|---------------|--------------------|
| a) 1 only | b) 2 only |
| c) Both 1 & 2 | d) Neither 1 nor 2 |

ANSWER- B

STATES IN 6 TH SCHEDULE	STATE LEGISLATURE ACT	PARLIAMENT ACT
Assam	Governor	Governor
Meghalaya, Tripura, Mizoram	Governor	President

EXPLANATION

- The **administration of tribal areas** for the four States of Assam, Meghalaya, Tripura, Mizoram fall under **the 6th Schedule**.
- The **5th Schedule** deals with administration and control of **Scheduled areas and Scheduled Tribes** in any States except States of AMTM (Assam, Meghalaya, Tripura, Mizoram).



EXPLANATION

- However, the second statement is correct because the Governor is empowered to direct that an Act of Parliament does not apply to a scheduled area in the State.

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